

Line 4

Case Name: *Craig Rotbert v. Apele Builder, Inc., et al.*

Case No.: 26CV485448

See ORDER above. (As trial of the case already started on September 8, 2026—the trial date set at *Plaintiff's* request for trial preference (*see* Order, June 4, 2026)—the issues raised by Plaintiff in this Motion must now be presented to and determined by the Trial Judge, to whom this pre-trial Civil Case Manager defers. So this Motion in Department 16 today is **OFF CALENDAR.**)

Line 5

Case Name: *Vahe Tashjian v. Planet Home Lending, LLC, et al.*

Case No.: 20CV371971

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

On July 14, 2026, Plaintiff Vahe Tashjian (“Plaintiff”) filed this motion to release to Plaintiff \$304,000.00 in bond money that Plaintiff paid into the Court as a condition of enjoining the pending foreclosure sale on his property located at 901 Loyola Drive, Los Altos, CA 94024. Notice of Motion (the “Motion”) at 1:20-24 (filed: July 14, 2026). This Motion is set for hearing on September 9, 2026.

However, as Plaintiff is well aware, less than one month before Plaintiff filed this Motion on July 14, 2026, nonparty Bell Investment Partners, LLC (“Bell Investment”) on June 15, 2026 filed an ex parte application to release to Bell Investment the same exact \$304,000.00 in bond money. According to Bell Investment in that ex parte application, a “valid and unsatisfied money judgment has been entered in favor of Judgment Creditor Bell Investment against Judgment Debtor Vahe Tashjian”—Plaintiff in this action—and “[b]ecause the funds on deposit represent property in which Judgment Debtor holds a ‘right to payment’ or ‘beneficial interest,’ the funds are subject to enforcement and turnover under Code of Civil Procedure Sections 708.510.” Ex Parte Application at 1:25-2:2:2 (filed: June 15, 2026, Case No. 20CV371971. Plaintiff is keenly aware of that application because Plaintiff promptly filed an opposition to it that same day on June 15, 2026.

As Plaintiff is also aware, later that same day on June 15, 2026, the Court signed and dated an Order DENYING Bell Investment’s ex parte application. The Court did *not* reach the merits of that application but rather denied it solely on the ground that it did not meet the standard for emergency ex parte relief of showing that “irreparable harm or immediate danger will result if emergency relief is not granted.” Order at 2:8-10 (citing CRC 3.1202(c)) (filed: June 24, 2026.). Making crystal clear to all that the Court wants this important issue of who gets the \$304,000.00 decided in the normal course after full briefing by noticed motion involving *all* relevant parties, the Court ORDERED Bell Investments: “Bring a noticed motion.” *Id.* at 2:12.

When Plaintiff on July 14, 2026 filed a noticed Motion to release to Plaintiff the \$304,000.00 bond, the Clerk of the Court set Plaintiff’s Motion for hearing on September 9, 2026. But when Bell Investments, following the Court’s direct order to bring a noticed motion, filed its noticed motion (styled as an “application”) just one week later on July 21, 2026—to release the exact same \$304,000.00 bond—the Clerk of the Court set Bell Investments’ motion for hearing on April 28, 2027.